REALTORS® Association of Edmonton

RESIDENTIAL LANDLORD AGREEMENT FOR POSTING WITHOUT REPRESENTATION

THIS RESIDENTIAL LANDLORD AGREEMENT FOR POSTING WITHOUT REPRESENTATION (THE "AGREEMENT") IS AMONG THE LANDLORD AND THE LANDLORD'S BROKERAGE (THE "BROKERAGE"):

AGREEMENT #:

THE LANDLORD:

NAME:

NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

THE BROKERAGE:

BROKERAGE NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

BROKER, ASSOCIATE BROKER, OR ASSOCIATE AUTHORIZED TO REPRESENT THE BROKERAGE:

This Agreement is entered into by the Landlord and the Brokerage on the basis of the following facts:

(a) the Landlord owns the Property;
(b) the Landlord wishes to retain the services of the Brokerage as set forth below;
(c) the Brokerage may also represent tenants who are interested in leasing the Property;
(d) the Landlord has received and read the Consumer Relationships Guide (the "CRG") published by the REALTORS® Association of Edmonton ("RAE") and this Agreement, and has been given an opportunity to seek further information and independent advice concerning the relationships discussed therein; and
(e) the Brokerage is a member of RAE (the "Association").

In consideration of the Brokerage posting the Property to the Association's MLS® System, the Landlord hereby gives the Brokerage the right to offer the Property for lease for the price of $_____/ month including GST, if applicable. All goods and utilities excluded except: _____
_____.

1. ACKNOWLEDGMENT OF NON-REPRESENTATION

1.1 The Landlord has read the CRG and acknowledges that the Landlord has chosen to forgo any agency representation. The Brokerage and its representatives will not owe the Landlord any agency obligations and will not provide any services that require exercising discretion or judgment, giving advice, or advocating on the Landlord's behalf.

1.2 The Landlord acknowledges that the obligations owed to the Landlord are limited to:

(a) exercising reasonable care and skill in providing services to the Landlord;
(b) not negligently or knowingly providing the Landlord with false or misleading information; and
(c) complying with the provisions of the Real Estate Act and its Regulations, the Rules and Bylaws of the Real Estate Council of Alberta, and the rules and regulations of the Association and the Canadian Real Estate Association.

1.3 The Landlord acknowledges that the Brokerage may be representing tenants who may wish to make an offer on the Property and the Brokerage is obligated:

(a) to act in the best interest of the tenant; and
(b) to communicate to the tenant all information, whether of a confidential nature or not, that it receives from the Landlord.

2. THE PROPERTY

The Property is located at (municipal street address)
_____
_____ having the legal description of Plan _____ Block _____ Lot/ Unit _____ Other

(the "Property").

© 2023 Calgary Real Estate Board Co-operative Limited. All rights reserved. Publication, reproduction or distribution of this documents by any means whatsoever - including without limitation electronic transmission via Internet or email or placing such material on any website anywhere in the world - is strictly prohibited without the prior written consent of the Calgary Real Estate Board Co-operative Limited.

3. TERM

This Agreement will commence at _____.m. on the _____ day of _____, 20____ (the "Commencement Date") and will expire at _____.m. on the _____ day of _____, 20_____ (the "Expiry Date"). The term of this Agreement begins on the Commencement Date and ends on the occurrence of an event listed in Section 16.1 or Section 16.2 (the "Term").

4. POSSESSION DATE

The proposed possession date is _____.

5. MLS® SYSTEM SERVICES

5.1 All MLS® System Listings must:

(a) be for a minimum duration of 60 days;

(b) provide compensation for cooperating brokers for the lease of the Property; and

(c) not exclude any licensed industry member from acting as a cooperating broker.

5.2 This Agreement must be completed in full and must include the names of the parties, the Term, the address and legal description of the Property, the price at which the Property is being offered, the fee being offered to cooperating brokerages, the possession date, and other Property dependent information necessary for the marketing of the Property. This information will be entered into the MLS® System.

5.3 Changes to the information described in Section 5.2 will require the signature of the Landlord.

5.4 Should the Landlord not wish its name to be entered into the MLS® System, this is permissible upon receipt of a written request from the Landlord through its brokerage.

5.5 The Landlord's name and contact information shall not appear on REALTOR.ca or in the public remarks on the MLS® System.

5.6 The Brokerage may permit the Landlord to reserve the right to lease the Property itself. If Landlord's rights reserved apply to a listing, that fact shall be disclosed to other members of the Association via the MLS® System.

5.7 The Landlord acknowledges that:

(a) the information being provided to the MLS® System is not confidential information as defined in the Personal Information Protection Act ("PIPA");

(b) once the information is entered into the MLS® System it will endure and cannot be removed; and

(c) the Landlord has no right to restrict the use of information entered into the MLS® System in any way.

Note: MLS® System Listing means a property listed for lease on the Association's MLS® System. The trademarks MLS®, Multiple Listing Service® and the associated logos are owned by the Canadian Real Estate Association ("CREA") and identify the quality of services provided by real estate professionals who are members of CREA.

6. BROKERAGE OBLIGATIONS

The Brokerage will:

(a) post the Property for lease on the Association's MLS® System subject to the Association's rules;

(b) be accountable and responsible for the accuracy of data related to the Property that is provided to the Association's MLS® System;

(c) maintain, and if necessary amend, the information on the Association's MLS® System; and

(d) report the date the lease commences, the lease rate, and the possession date to the Association's MLS® System when a lease is entered into for the Property.

7. BROKERAGE FEE

7.1 The Landlord will pay the Brokerage as compensation:

(a) upon the signing of this Agreement $_____ plus GST (the "Fee"); and

(b) further fees as follows: _____ _____.

7.2 The Landlord instructs the Brokerage to post on the Association's MLS® System that the Landlord will offer to brokers representing potential tenants compensation of $_____ plus GST prior to an offer to lease is presented to the Landlord by the tenant's brokerage representative. ☐ Yes ☐ No

7.3 The Landlord acknowledges that the Brokerage will offer $_____ plus GST as compensation to cooperating brokerages to be paid by the Brokerage out of the Fee.

8. DUTIES OF THE LANDLORD

The Landlord will:

(a) provide the Brokerage with all the information necessary for the listing of the Property;

(b) communicate and cooperate with the Brokerage in a timely manner;

(c) immediately advise the Brokerage of any change in status of the Property or in the information provided by the Landlord;

(d) report the lease information, as per Section 6(d), to the Brokerage when a lease is entered into for the Property;

(e) comply with all privacy laws; and

(f) provide all information and documentation necessary for the Brokerage to fulfill its obligation under Section 5.

© 2023 Calgary Real Estate Board Co-operative Limited. All rights reserved. Publication, reproduction or distribution of this documents by any means whatsoever - including without limitation electronic transmission via Internet or email or placing such material on any website anywhere in the world - is strictly prohibited without the prior written consent of the Calgary Real Estate Board Co-operative Limited.

9. IMPORTANT INFORMATION

9.1 Landlords are required by common law to disclose defects that are hidden, not visible or discoverable through a reasonable inspection of the Property, and that render the Property dangerous or potentially dangerous to the occupants, or unfit for habitation. Landlords may also be required to disclose government and local authority notices, lack of development permits and hidden defects that would involve great expense to remedy.

Are you aware of any such defects in the Property? ☐ Yes ☐ No _____ Landlord's Initials

Have you received any government or local authority notices? ☐ Yes ☐ No _____ Landlord's Initials

Are you aware of any lack of permits for any development including secondary suites, on the Property? ☐ Yes ☐ No _____ Landlord's Initials

Are you aware of any hidden defects that would involve great expense to remedy? ☐ Yes ☐ No _____ Landlord's Initials

9.2 Secondary suites are only permitted on the Association's MLS® System with evidence of municipal compliance. Properties without evidence of municipal compliance can be withdrawn from the Association's MLS® System. _____ Landlord's Initials

10. ADVICE TO LANDLORD

The Landlord is advised that the Brokerage is providing services as a real estate professional, and the Brokerage does not represent to provide any advice that a lawyer, tax advisor, lender, appraiser, surveyor, structural engineer, property inspector, or other professional service provider would normally provide.

11. LANDLORD WARRANTIES

The Landlord warrants the following:

(a) the Landlord has the authority to lease the Property and enter into this Agreement;

(b) the Property is not currently the subject of any Landlord Brokerage Agreement; and

(c) all information provided to the Brokerage is accurate to the best of the Landlord's knowledge.

12. LANDLORD'S CONFIDENTIAL INFORMATION WILL BE PROTECTED

The Brokerage undertakes it will:

(d) not use confidential information received from the Landlord, or obtained as a result of providing services under this Agreement, for its own gain or the gain of its employees or to the prejudice of the Landlord's interests; and,

(e) not disclose any confidential information concerning the Landlord to any other brokerage or other person unless authorized by the Landlord or required by law.

13. USE AND DISTRIBUTION OF LANDLORD INFORMATION

13.1 The Landlord understands and consents to the collection, use and disclosure of personal information (as defined in PIPA) by the Brokerage and the Association for the purpose of this Agreement and such other use as is consistent with listing the Property including, but not limited to:

(a) listing the Property using any medium including electronic media, interior and exterior photographs and video; and

(b) retaining and disclosing any listing and lease information, including price, which may be used by the Brokerage for any purpose relating to their business including conducting comparative analysis and disclosing such information to other persons such as appraisers and other brokerages.

13.2 If the Landlord has any questions about the collection of personal information, the Landlord can contact the privacy officer for the Brokerage using the Brokerage's contact information on page 1.

13.3 Subject to Section 5 of this Agreement, the Landlord consents to placement of the listing and lease information by the Brokerage into the Association's MLS® System and acknowledges that the Association's MLS® System is the property of the Association.

13.4 The Landlord further acknowledges that the Brokerage and the Association may:

(a) distribute the information to any persons authorized to use such service which may include other brokers, government departments, appraisers, municipal organizations, and others;

(b) compile, retain and publish any statistics including historical listing service data which may be used by the Brokerage and Association members to conduct comparative market analyses; and

(c) make such other use of the information as the Brokerage and the Association deem appropriate in connection with the listing of real estate.

14. INDEMNIFICATION

The Landlord will save, hold harmless and indemnify the Brokerage, and any of its respective officers, directors and employees (the "Indemnified Parties") for any and all alleged or actual claims, losses, costs, damages, expenses, penalties, fines, legal fees on a solicitor client cost basis, or any other amounts for which the Indemnified Parties may incur or be found liable to pay and which are attributable or arise out of the Indemnified Parties reasonable and good faith reliance on representations made, or information provided by, the Landlord.

15. ADDITIONAL TERMS

15.1 The Landlord agrees that:

(a) the Brokerage may represent other landlords and tenants; and

(b) the Brokerage cannot disclose to the Landlord confidential information obtained through any agency relationship to

© 2023 Calgary Real Estate Board Co-operative Limited. All rights reserved. Publication, reproduction or distribution of this documents by any means whatsoever - including without limitation electronic transmission via Internet or email or placing such material on any website anywhere in the world - is strictly prohibited without the prior written consent of the Calgary Real Estate Board Co-operative Limited.

which the Brokerage is or has been a party.

15.2 This Agreement:

(a) includes, if signed or initialed by the Landlord and attached to this Agreement, the following documents, which shall form part of this Agreement: _____
_____
_____;

(b) will constitute the entire agreement among the Landlord and Brokerage and there are no representations, warranties, collateral agreements, or conditions which affect this Agreement other than as expressed herein;

(c) is for the benefit of and will be binding upon the heirs, administrators, executors, successors and assigns of the parties; and

(d) will be governed by the laws of the Province of Alberta and the parties will submit to the jurisdiction of the Courts of the Province of Alberta for the resolution of any disputes that may arise out of this Agreement.

15.3 If any provision of this Agreement is found to be invalid, void, illegal, or not enforceable, such provision shall be considered separate and severable from this Agreement and the remaining provisions shall remain in force and be binding upon the parties.

15.4 The headings in this Agreement are inserted for convenience of reference only and shall not affect the construction of this Agreement.

15.5 No amendment to the terms of this Agreement shall be effective unless it is in writing and signed by the Landlord and the Brokerage.

15.6 If there is conflict or discrepancy between any provision added to this Agreement and any provision in the standard portion hereof, the added provision will supersede the standard provision to the extent of such conflict or discrepancy.

16. ENDING THIS AGREEMENT

16.1 Without prejudice to the acquired rights of the Landlord or the Brokerage, this Agreement will end upon:

(a) a completed agreement to lease the Property;

(b) the Expiry Date or on an earlier date than the Expiry Date if mutually agreed to by the Landlord and the Brokerage in writing;

(c) the suspension or cancellation of the Brokerage's license to trade in real estate;

(d) the Brokerage ceasing to be a member in good standing of the Association; or

(e) the bankruptcy or insolvency of the Brokerage or if it is in receivership.

16.2 Where one party to this Agreement has materially breached a part of this Agreement, the other party may, at its option, end this Agreement by notice in writing to the party in breach.

16.3 When this Agreement ends, the Brokerage will immediately:

(a) remove the Property as an active listing on any listing service;

(b) cease all marketing activities on behalf of the Landlord;

(c) remove all signs and any lockbox from the Property; and

(d) return documents and other materials provided by the Landlord.

16.4 Ending this Agreement for whatever reason does not relieve the Brokerage of its duties to account for all monies received by the Brokerage and its duty of confidentiality to the Landlord.

17. DEFINITIONS

For the purposes of this Agreement:

(a) "business day" means every day except Saturday, Sunday, and statutory holidays;

(b) "landlord" means a person disposing or attempting to dispose of an interest in real estate by lease;

(c) "lease" includes an exchange , option, lease, or other acquisition/disposition of an interest in real estate;

(d) "lease is complete" when the lease is executed or possession is granted to the tenant, whichever occurs first; and

(e) "tenant" means a person acquiring or attempting to acquire an interest in real estate by lease.

18. NOTICES

Notices shall be delivered upon the Landlord or Brokerage, as the case may be, at the addresses listed on the first page of this Agreement, unless otherwise specified in writing. Any notice may be served personally, or by registered or certified mail postage prepaid, or by electronic means, including email. If mailed from a post office in Edmonton, such notice shall be deemed to have been received by the addressee three (3) post office business days after the date of mailing.

19. LANDLORD'S ACKNOWLEDGMENT

The Landlord, having received and read this Agreement and the CRG, and having been given the opportunity to request further information concerning this Agreement and the representation relationships described in the CRG, acknowledges this Agreement accurately sets out the terms agreed to by the Landlord and the Brokerage.

© 2023 Calgary Real Estate Board Co-operative Limited. All rights reserved. Publication, reproduction or distribution of this documents by any means whatsoever - including without limitation electronic transmission via Internet or email or placing such material on any website anywhere in the world - is strictly prohibited without the prior written consent of the Calgary Real Estate Board Co-operative Limited.

20. SIGNATURES

This Agreement may be signed by the parties in counterparts and delivered originally or electronically. The signed and delivered electronic copy is deemed to be an original. Signing may be done by wet ink, insertion by the signatory of an image of a wet ink signature, or by means of an electronic signature.

Landlord's Signature	Witness' Signature
Landlord's Printed Name	Witness' Printed Name
Landlord's Signature	Witness' Signature
Landlord's Printed Name	Witness' Printed Name
Signature of Broker, Associate Broker, or Associate authorized to sign on behalf of the Brokerage	Brokerage Representative's Printed Name

Landlord initial here to show you have received a copy of this Agreement: _____ Date: _____

© 2023 Calgary Real Estate Board Co-operative Limited. All rights reserved. Publication, reproduction or distribution of this documents by any means whatsoever - including without limitation electronic transmission via Internet or email or placing such material on any website anywhere in the world - is strictly prohibited without the prior written consent of the Calgary Real Estate Board Co-operative Limited.